

required documents on all parties. Should counsel choose to file again, additional efforts will need to be made to confirm the address used for service on Defendant. The proposed Order cannot be modified. Defendant's counsel is to prepare the Order.

IN RE: DIGIUSEPPE

CASE NUMBER: 26CV-0209838

Tentative Ruling on Petition for Change of Name: Petitioner seeks to change the last name of her minor daughter. The Certificate of Publication has been filed. Pursuant to Evid. Code § 452(d), the Court takes judicial notice of the Judgment filed on March 17, 2025 in Case No. 206611. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

ITRIA VENTURES LLC VS. KAMFOLT

CASE NUMBER: 23CV-0203471

Tentative Ruling on Order to Show Cause Re: Dismissal: On March 2, 2026, the Court issued an Order to Show Cause Re: Dismissal to Cross-Complainant Michael Jay Kamfolt, in pro per, for failure to timely serve the Cross-Complaint and failure to timely prosecute the Cross-Complaint. The Cross-Complaint was filed on July 2, 2024 and names all new parties. "A cross-complaint against a party who has appeared in the action must be accompanied by proof of service of the cross-complaint at the time it is filed. If the cross-complaint adds new parties, the cross-complaint must be served on all parties and proofs of service on the new parties must be filed within 30 days of the filing of the cross-complaint." CRC 3.110(c). There is still no Proof of Service of Summons on file for any of the Cross-Defendants. Cross-Complainant did not file a written response to the Order to Show Cause. Monetary sanctions have already been imposed for the delay.

With no sufficient excuse for the delay and because previous sanctions have been ineffective, the Cross-Complaint filed on July 2, 2024 is dismissed without prejudice pursuant to Gov. Code § 68608(b).

OFFICER VS. MID VALLEY PROVIDERS, INC., A CALIFORNIA CORPORATION

CASE NUMBER: 22CV-0201036

Tentative Ruling on Motion for Class Certification: Plaintiff Danielle Officer seeks class certification. Defendant Mid Valley Providers, Inc. opposes the motion.

Evidentiary Objections. Plaintiff objects to eight portions of the Declaration of Debbie Larmour. The Court overrules as to each of the eight objections. Plaintiff objects to 29 portions of the Declaration of Robert Crandall. The Court overrules as to each of the objections with the exception of Objections 12 and 13 which are sustained under Evid. Code § 702 and speculation as to 13 only.

Judicial Notice. Plaintiff requests the Court take judicial notice of six Opinion Letters issued by the DLSE. Defendant did not object. The request granted pursuant to Evid. Code §§ 452 and 453.

Merits. A class action permits persons to sue on behalf of others where it is shown to be necessary and superior to separate lawsuits by or against members of the group individually. CCP § 382 provides authority for class actions: "[W]hen the question is one of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court, one or more may sue or defend for the benefit of all." To maintain a class action, certain prerequisite conditions must exist, and the action must be based on one or more permissible grounds.

Under California law, the two basic requirements that must exist to sustain a class action are: the existence of an ascertainable class, and a well-defined community of interest in the questions of law and fact involved. With respect to the community of interest requirement, three separate factors are considered: 1) predominant common